

25NNCV01805 25NNCV01805

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Case Number: 25NNCV01805 Hearing Date: July 10, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION FOR TERMINATING SANCTIONS

Hearing Date: 7/10/26¿

CASE NO./NAME: 25NNCV01805 William King III et al. v.

San Fernando Subacute Rehabilitation Center, LLC, et al.

Moving Party: Defendants San Fernando Subacute Center, LLC dba
Golden Legacy Care Center, Antonio Moya, Jr., and Christine Maloles

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT

NOTICE

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the

ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a wrongful death case. On March 13, 2025, Plaintiffs William King III, individually and as successor-in-interest to William King and Brian Christopher King, individually (collectively, Plaintiffs) filed a Complaint against defendants San Fernando Subacute Rehabilitation Center, LLC dba Golden Legacy Care Center, RG Legacy I, LLC dba Golden Rose Care Center, Antonia Moya Jr., Christine Maloles, Ragini Kaur, Erickzen Alibadbad (collectively, Defendants) and DOES 1 through 250, inclusive.

On November 24, 2025, Plaintiffs filed a First Amended Complaint alleging causes of action for (1) elderly adult abuse by neglect, (2) negligence, and (3) violation of Patient's Bill of Rights (Health and Safety Code § 1430 subd. (b)), (4) wrongful death – elder abuse by neglect, and (5) wrongful death (negligence).

On March 13, 2026, the Court sustained Defendants' demurrer to the first, third, fourth, and fifth causes of action. The cause of action for negligence moved forward. On April 10, 2026, Defendants filed an Answer.

On June 2, 2026, defendants San Fernando Subacute Center, LLC dba Golden Legacy Care Center, Antonio Moya, Jr., and Christine Maloles (hereinafter, Movants) filed the instant motion for terminating sanctions based on Plaintiffs' repeated failures to comply with discovery and the Court's prior orders.

LEGAL STANDARD

Code of Civil Procedure § 2023.030 gives the court the discretion to impose sanctions against anyone engaging in a misuse of the discovery process. Misuse of the discovery process includes failure to respond to an authorized method of discovery or disobeying a court order to provide discovery. (Code Civ. Proc., § 2023.010, subds. (d), (g).) A court may impose terminating sanctions by striking pleadings of the party

engaged in misuse of discovery or entering default judgment. (Code Civ. Proc., § 2023.030, subd. (d).) A violation of a discovery order is sufficient for the imposition of terminating sanctions. (Collison & Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1620.) Terminating sanctions are appropriate when a party persists in disobeying the court's orders. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 795-796.)

The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) If a lesser sanction fails to curb abuse, a greater sanction is warranted. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) However, "the unsuccessful imposition of a lesser sanction is not an absolute prerequisite to the utilization of the ultimate sanction." (Deyo, supra, 84 Cal.App.3d at p. 787.) Before any sanctions may be imposed the court must make an express finding that there has been a willful failure of the party to serve the required answers. (Fairfield v. Superior Court for Los Angeles County (1966) 246 Cal.App.2d 113, 118.) Lack of diligence may be deemed willful where the party understood its obligation, had the ability to comply, and failed to comply. (Deyo, supra, 84 Cal.App.3d at p. 787; Fred Howland Co. v. Superior Court of Los Angeles County (1966) 244 Cal.App.2d 605, 610-611.) The party who failed to comply with discovery obligations has the burden of showing that the failure was not willful. (Deyo, supra, 84 Cal.App.3d at p. 788; Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250; Evid. Code, §§ 500, 605.)

A terminating sanction is a "drastic measure which should be employed with caution." (Deyo, 84 Cal.App.3d at p. 793.) "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.) While the court has discretion to impose terminating sanctions, these sanctions "should be appropriate to the dereliction and should not exceed that which is required to protect the

interests of the party entitled to but denied discovery.” (Deyo, 84 Cal.App.3d at p. 793.) “[A] court is empowered to apply the ultimate sanction against a litigant who persists in the outright refusal to comply with his discovery obligations.” (Ibid.)

DISCUSSION

Movants argue that Plaintiffs have willfully and repeatedly refused to comply with the Court’s order. (Mot., p. 4.) Movants argue that Plaintiffs have also refused to attend any Court ordered hearings. (Ibid.) Movants argue that they have been forced to incur costs in responding to the Complaint, serving discovery, filing several motions to compel responses due to Plaintiffs’ refusal to participate in the litigation process. (Ibid.) Movants argue that a less severe sanction would not produce compliance with the discovery rules because Plaintiffs’ violations are willful. (Mot., p. 5.)

Here, the Court finds Plaintiffs repeated violations were willful. On December 19, 2025, Plaintiff made their last appearance. (Eng Decl., ¶ 2.) Movants counsel, Kevin Eng, declares that Plaintiff William King, III stated in open court that he wished to dismiss the case. (Ibid.) On December 29, 2025, Plaintiff did not appear at the hearing for their former counsel’s Motion to be Relieved. (Eng Decl., ¶ 3.) Following this hearing, Defendants counsel provided Plaintiff with Requests for Dismissal to sign and return, Plaintiff did not respond. (Eng Decl., ¶ 3, Exh. 4.) On February 2, 2026, Plaintiff was served by mail and email with written discovery. (Eng Decl., ¶ 4.) Responses were due March 6, 2026, however Defendants have not yet received a response. (Ibid.) On March 11, 2026, Plaintiffs were served by mail and email with a meet and confer letter regarding written discovery, Plaintiffs did not respond. (Eng Decl., ¶ 4, Exh. 5.) On May 8, 2026, Movants’ motions to compel responses to form and special interrogatories (Interrogatories) and requests for production of documents (RPD) were granted by the Court. (Eng Decl., ¶ 5, Exh. 1.) On May 13, 2026, Plaintiff failed to appear at a hearing for order to show cause regarding sanctions and order to show cause regarding dismissal for failure to timely comply with default. (Eng Decl., ¶ 6, Exh. 2.)

Since December of 2025, Plaintiffs have refused to appear in 3 consecutive hearings, refused to participate in the discovery process, and refused to comply with the Court’s orders to respond to

discovery requests. (Eng Decl., ¶¶ 2-6.) Plaintiffs have also failed to respond to any communications from Movants' counsel. (Ibid.) Thus, the Court finds repeated violations a willful abandonment of the litigation process.

The burden then shifts to Plaintiff to show the failures were not willful. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 788; Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250; Evid. Code, §§ 500, 605.) Plaintiff filed no opposition and therefore made no showing that the repeated failures to appear were not willful.

The Court finds lesser sanctions would not be effective. Although California law favors an incremental approach to sanctions, that approach has already been attempted here. Plaintiff failed to appear on multiple occasions.

The evidence also suggests Plaintiffs abandoned the action in December of 2025. Since then, Plaintiffs have neither appeared nor otherwise participated in the case. Under these circumstances, the Court finds lesser sanctions would not secure compliance and that terminating sanctions are warranted.

CONCLUSION AND ORDER

Movants San Fernando Subacute Center, LLC dba Golden Legacy Care Center, Antonio Moya, Jr., and Christine Maloles's motion for terminating sanctions is GRANTED.

Movants shall provide notice of this order.

Hon. Victor Avila

Judge of the Superior Court